

BIGGS v. DEANGELIS, et al

21CV45738

DEFENDANT'S MOTION TO STAY

This is a personal injury action, arising out of a rear-end automobile accident along a public stretch of Baldwin Street in Rancho Calaveras, CA, on 10/31/19. Despite there being adequate service on only one of the two named defendants (see ROA entry 04/13/22), both of the defendants have answered. Before the Court this day is a motion by one of those defendants – Donovan – to stay the action pursuant to the Servicemembers Civil Relief Act. Plaintiff objects.

Pursuant to 50 USC §3932, any civil litigant currently serving in the military is entitled to a stay of the action “for a period of not less than 90 days” upon a showing (1) that the servicemember’s “duty requirements materially affect the servicemember’s ability to appear,” and (2) that “military leave is not authorized for the servicemember at the time.” The first element can be established by “a letter or other communication” from a person with knowledge of said restriction (usually the servicemember). The second element regarding permissive leave can only be established by “a letter or other communication from the servicemember’s commanding officer.” The purpose of §3932 is to temporarily suspend judicial proceedings to prevent those in service to the nation from being disadvantaged in the legal process. The statute is to be liberally construed in favor of servicemembers. Thus, if both elements are met, or if the evidence that is presented demonstrates without doubt that the servicemember is unable to be physically present for scheduled hearings, the initial (minimum) 90-day stay becomes mandatory. (See *In re Amber M.* (2010) 184 Cal.App.4th 1223, 1230-1231 [trial court abused its discretion when it denied incomplete application for stay since evidence was clear that servicemember was unable to attend and no prejudice to the opposing side was shown]; in accord, *In re A.R.* (2009) 170 Cal.App.4th 733,742; *George P. v. Superior Court* (2005) 127 Cal.App.4th 216, 223-224 [distinguishing between mandatory first 90-day stay, and discretion stays thereafter].)

As set forth in defendant’s declaration: (1) he is a currently enlisted and active-duty member of the U.S. Army; (2) he is stationed well beyond the reach of this Court (in Fairbanks, Alaska); (3) he has limited access to defense counsel; and (4) he is unable to fully participate in the defense of the case. (See Deangelis Declaration, Paragraphs 2-5.) As set forth in defense counsel’s declaration, communication has been challenging. (See Leonard Declaration, Paragraph 4.) Not expressly stated, but evident from the information, is that being in Alaska makes it impossible to physically appear at any future substantive hearing in the action.

Plaintiff correctly points out that defendant's application is defective in that there is no letter or other communication from defendant's commanding officer addressing the options for leave. Defendant does not address this requirement in his reply papers, and simply doubles down on the concept that his spotty cell service and general enlistment make it hard to interact with counsel, or deal with the case on its merits.

The request for a stay is granted despite this shortcoming in complying with statutory requirements, but only pursuant to this Court's inherent powers under CCP §128(a)(3) (see *Avant! Corp v. Superior Court* (2000) 79 Cal.App.4th 876, 884.) The request pursuant to §3932 is denied without prejudice. Defendant is free to bring a renewed motion to stay under §3932 but must provide the required letter from a commanding officer regarding options for leave. One of the reasons this Court feels that a stay under §128 is warranted is to ameliorate the problem created by defense counsel in filing an answer on defendant's behalf when defendant was never properly served. Counsel waived the service defect on defendant's behalf, likely without defendant's express consent and apparently without knowledge of defendant's enlistment.

The case is stayed only as to defendant Donovan, and only for a period of 120 days (effective immediately).

The Clerk shall provide notice of this Ruling to the parties forthwith. No CCP §1019.5 or CRC 3.1312 order shall be required.

KAISER v. ATKINS et al

21CV44871

**DEFENDANT'S APPLICATION
FOR PRELIMINARY INJUNCTION**

This is a civil dispute between former romantic partners involving unfulfilled promises and comingled assets. The operative pleading contains two causes of action: partition of real and personal property; and breach of oral contract to repay personal loans. The action has been pending for over two years, and is presently scheduled for trial on 11/16/22. The parties have attempted to resolve their differences without resort to judicial intervention, and in fact brokered a settlement agreement regarding the second (breach of oral contract) cause of action (though issues with that settlement apparently persist). There is apparently an agreement to buy out or sell the property, which is presently alleged to be under consensual forbearance from a nonjudicial foreclosure sale.

Before the Court this day is the specially-set hearing on plaintiff's application for a preliminary injunction to presumably halt the nonjudicial foreclosure sale potentially taking place soon. Although this Court granted a temporary restraining order on 09/20/22, the court file does not reflect any proof of service on U.S. Bank, N.A. Rushmore Loan Management Services, or any other entity responsible for the alleged nonjudicial foreclosure. In addition, since the filing of the ex parte request, the landscape has changed: there is in place a forbearance agreement through the date of trial. Since California does not permit dual tracking, this forbearance agreement – provided that the parties comply therewith – provides the necessary breathing room for plaintiff and defendant to list the property for sale. Moreover, the application for preliminary injunction does not include any legal basis by which this Court can stop Rushmore from foreclosing on the property if the forbearance agreement is breached. To the extent plaintiff can show that the equity she receives from a foreclosure sale was less than what she would have realized going to market, her recourse is against defendant, not Rushmore. Application for preliminary injunction DENIED without prejudice. The TRO is vacated.

The Clerk shall provide notice of this Ruling to the parties forthwith. No CCP §1019.5 or CRC 3.1312 order shall be required.